Brazoria County District Court

Cause No. 2024-CV-0038

James Castillo, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 22, 2024
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

PARTIES

Plaintiff James Castillo is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance carrier authorized to transact business in the State of Texas, which issued the policy of insurance under which Plaintiff seeks benefits and which is responsible for the claims handling and contractual obligations described herein.

FACTS

On February 24, 2023, Plaintiff was lawfully operating a vehicle in Pearland and was in the process of turning left at an intersection when another vehicle struck Plaintiff's car. The impact occurred while Plaintiff was lawfully proceeding through the turn and was not the result of any act or omission by Plaintiff. Following the collision, Plaintiff reported the loss to Defendant and submitted the documentation requested under the policy. Defendant's handling of the claim has not resulted in payment sufficient to cover Plaintiff's medical care and losses, and Plaintiff has been required to pursue this action to obtain the benefits due under the policy.

NEGLIGENCE

The driver of the other vehicle owed a duty to exercise ordinary care in operating a motor vehicle, including the duty to keep a proper lookout, to control speed, and to yield the right of way where required. That driver breached those duties, and the breach proximately caused the collision. Defendant, as the insurer obligated under the polciy to pay covered losses and to handle claims in good faith, owed Plaintiff duties of fair dealing, prompt investigation, and reasonable settlement once liability became reasonably clear. Defendant breached those duties by failing to adequately evaluate the cliam and by delaying or underpaying benefits that were reasonably owed.

DAMAGES

As a direct result of the collision, Plaintiff sustained whiplash and related soft tissue injuries to the neck and back, accompanied by pain, stiffness, headaches, and limited range of motion. Plaintiff has incurred medical expenses for examination, imaging, and treatment, and will likely require further care. Plaintiff has also suffered lost earnings, diminished capacity to perform daily activities, and mental anguish. Plaintiff seeks actual damages, statutory interest, attorney's fees, and court costs as permitted by Texas law, in an amount of $206,000.00.